

SENATE BILL NO. 375

INTRODUCED BY M. NOLAND

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING LAWS RELATED TO THE SALE OF HEMP PRODUCTS TO CONSUMERS; PROHIBITING THE SALE OF ~~EDIBLE HEMP~~ PRODUCTS THAT CONTAIN THC TO CONSUMERS; PROVIDING A ~~DEFINITION~~ DEFINITIONS; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Sale of edible hemp ~~PRODUCT CONTAINING THC TO CONSUMERS~~
prohibited. (1) Unless authorized as a FOOD OR drug by the United States food and drug administration, an ~~edible product containing A hemp~~ PRODUCT CONTAINING TOTAL DELTA-9 TETRAHYDROCANNABINOL (THC) may not be sold TO A CONSUMER in the state.

(2) ~~(a) For the purposes of this section, "hemp" means the plant species Cannabis sativa L. and any part of that plant, including the seeds and all derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers, whether growing or not~~ THE FOLLOWING DEFINITIONS APPLY:

(A) "CONSUMER" MEANS AN INDIVIDUAL WHO IS A MEMBER OF THE PUBLIC, TAKES POSSESSION OF THE HEMP PRODUCT, AND DOES NOT OFFER THE HEMP PRODUCT FOR RESALE.

~~(A)(B)~~ "HEMP" HAS THE SAME MEANING AS PROVIDED IN 80-18-101.

~~(b) The term does not include synthetic cannabinoids.~~

~~(B)(C)~~ "HEMP PRODUCT" MEANS A PRODUCT THAT CONTAINS POSTHARVEST HEMP AND THAT IS INTENDED FOR CONSUMPTION, SMOKING, VAPING, OR ANOTHER METHOD OF ADMINISTRATION.

NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an integral part of Title 50, chapter 31, part 2, and the provisions of Title 50, chapter 31, part 2, apply to [section 1].

NEW SECTION. Section 3. Effective date. [This act] is effective on passage and approval.

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